



Maritime &
Coastguard
Agency

Guidance

MGN 504 (M) Amendment 3: Maritime Passenger Rights - role of the National Enforcement Body

Updated 1 December 2022

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Notice to all ship owners and agents, ship operators, managers and masters, seafarers, surveyors, port and terminal operators.

This notice should be read with Regulation (UK) No 1177/2010 of the United Kingdom Parliament and of the Council of 24.11.2010 concerning the rights of passengers when travelling by sea and inland waterway and amending Regulation (EC) No 2006/2004 that came into force on 18 December 2012 together with the Department for Transport Guidance Notes relating to Regulation (UK) No. 1177/2010 and replaces MGN 488(M)

Summary

This MGN identifies the role of the MCA as the Maritime Passenger Rights National Enforcement Body and also the role of the various voluntary UK Complaint Handling Bodies under the UK Regulation 1177/2010 on Maritime Passenger Rights. It also details the changes to the voluntary complaint handling body for England and Wales in respect ferry operations effective from 1 January 2014.

1. Introduction/background

1.1 The UK Regulation No 1177/2010 of the United Kingdom Parliament and of the Council of 24 November 2010 concerning the rights of passengers when travelling by sea and inland waterways and amending Regulation (EC) No 2006/2004 came into force on 18 December 2012.

1.2 Article 2 sets out the scope of the Regulation. It applies to passenger services and cruises where the port of embarkation is in the UK. The Regulation also applies to passenger services where the port of

embarkation is outside the UK but the port of disembarkation is situated within the UK. This notice is concerned with those operations embarking and/or disembarking at a point within the UK.

1.3 The Regulation establishes the right of all passengers to assistance in cases of cancelled or delayed departures and lays down the right, in certain circumstances, to compensation in case of delay in arrival. Additionally, the Regulation also provides disabled persons, or those with reduced mobility, with rights to accessibility assistance when traveling by water comparable with those in other transport sectors.

1.4 If an individual has a complaint, they should first raise it with the operator. Within the UK, if it cannot be resolved in this way, the complaint may then be referred to the appropriate voluntary Complaint Handling Body (CHB). It is anticipated most complaints will be resolved at one of these two stages.

1.5 However, if this is not possible, the complaint may then be investigated by the National Enforcement Body (NEB), which will consider whether there has been a breach of the UK Regulation. The Maritime and Coastguard Agency (MCA) will operate as the NEB for the whole of the UK. All complaints that are upheld by the CHB involving a breach of the Regulation are to be reported to the NEB.

2. Voluntary complaint handling bodies

2.1 Passengers' complaints are to be dealt with by the operator concerned in the first instance. If it cannot be resolved in this way and the operator's internal complaints procedure has been exhausted, the complaint may then be referred to the appropriate complaint handling body. The operator is to make the complainant aware of this option where it has not been possible to resolve the complaint.

2.2 Voluntary complaint handling bodies from 1 January 2014 are:

England and Wales

CLIA UK and Ireland - cruisers only (excluding Transport for London)
E-mail: passengerrights@cruising.org

Website: www.cruising.org (<https://cruising.org>)

Address:

CLIA UK and Ireland
Suite 210a
75 King William Street
London
EC4N 7BE

Telephone: 020 7323 7466

Fax: 020 7636 9206

ABTA Ltd - ferries only (excluding Transport for London)

E-mail: ferry@abta.co.uk

Website: www.abta.com (<https://www.abta.com>)

Address:

ABTA Ltd
30 Park Street
London
SE1 9EQ

Telephone: 020 3117 0599

Transport for London

London Travel Watch

Marine services operated by, contracted to and/or licensed by Transport for London.

E-mail: enquiries@londontravelwatch.org.uk

Website: www.londontravelwatch.org.uk
(<https://www.londontravelwatch.org.uk>)

Address:

London Travel Watch
Europoint
5-11 Lavington Street
London
SE1 0NZ

Northern Ireland

Consumer Council for Northern Ireland

E-mail: info@consumercouncil.org.uk

Website: www.consumercouncil.org.uk (<https://www.consumercouncil.org.uk>)

Address:

The Consumer Council
Floor 3
Seatem House
28-32 Alfred Street
Belfast
BT2 8EN

Telephone: 028 9025 1600

Textphone: 028 9067 2488

Scotland

Transport Scotland (Scottish Government)

E-mail: tss@transport.gov.scot

Website: www.transport.gov.scot (<https://www.transport.gov.scot/>)

Address:

Ferries Unit
Transport Scotland
Buchanan House
58 Port Dundas Road
Glasgow
G4 0HF

3. National Enforcement Body

3.1 The Maritime and Coastguard Agency (MCA) is responsible for investigating whether there has been a breach of the UK Regulation in individual cases. The Agency is required to take the measures necessary to ensure compliance with the UK Regulation. The MCA will not act on individual claims for compensation or act as an appeals body.

3.2 The contact details for the MCA National Enforcement Body are:
Telephone: 023 8032 9315 (voicemail) E-mail: neb@mcga.gov.uk

3.3 Any passenger complaints received directly from a passenger or passenger group under this Regulation must be referred to the operator involved in the first instance through their internal complaint procedure, unless a serious breach of the regulation is identified.

4. Department for Transport guidance notes

4.1 For more information see the Department for Transport guidance notes (<http://www.gov.uk/government/publications/draft-guidance-notes-relating-to-regulation-eu-no-1177-2010>).

More information

National Enforcement Body Officer
Regulatory and Compliance Team
Office of the Chief Executive
Maritime and Coastguard Agency
Bay 3/12 Spring Place
105 Commercial Road Southampton
SO15 1EG

E-mail: neb@mcga.gov.uk

General enquiries: infoline@mcga.gov.uk

MCA website: www.gov.uk/mca (<http://www.gov.uk/mca>)

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